
Journal

1986 PCrLJ 30

Court

LAHORE HIGH COURT

Date

1985-01-06

Appeal No.

CRIMINAL MISCELLANEOUS APPLICATION NO. ILL AND 22

Judge

SAEEDUZZAMAN SIDDIQUI

Parties

AMIR ALI AND 22 OTHERS PETITIONERS VERSUS THE STATE—RESPONDENTS

Lawyers

PIR BUX KHAMISANI, QURBAN ALI CHOCHAN, MUMTAZ PATHAN, KAZI HAFEEZULLAH, AGA ABDUL RASOOL, MADAD ALI SHAH, AZIZUR REHMAN, KAMALUDDIN, HAMZA KHAN, HASSAN ALI HEMARANI, KHAN MUHAMMAD MASHORI AND MUHAMMAD AQIL FOR APPELLANTS. A.A. MUHAMMADALI AND GHULAM HAIDER MEMON FOR THE STATE.

Statutes

SINDH CRIMES CONTROL ACT (IV OF 1975) - S. 14 AND PREAMBLE, 8(3), 5 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 561-A

Judgment

This order will govern the disposal of above-noted 23 criminal miscellaneous applications, which are filed by different applicants for quashment of proceedings initiated against them under the provisions

\

of Sind Crime Control Act, 1975 (I will hereinafter refer, Sind Crime Control Act of 1975 in this order as "The Act" only for the sake of convenience).

In all the above cases, the learned counsel for the applicants have raised common points of law which can be conveniently disposed of by a common order. The following broad submissions made by the learned counsel for the applicants are common in all the cases:

- (1) That resort to the proviso to section 5 of the Act by the tribunals was mechanical and without applying its mind to the facts of the individual cases and, therefore, the proceedings, are liable to be quashed.
- (2) That while serving warrants on applicants copies of reports against the applicants were not supplied to them and in any case the alleged reports against the applicants did not contain the particulars which are required to be stated under section 6 of the Act.
- (3) That the allegations contained in the respective reports against the applicants on the basis of which the tribunals took cognizance are absolutely vague and of general nature and, therefore, the Tribunal wrongly assumed jurisdiction in issuing process against the applicants under the Act.
- (4) That the allegations made against the applicants did not show that they are habitual offenders or indulged frequently in any of the acts specified under section 14 of the Act and, therefore, the tribunal had no jurisdiction to initiate proceedings against them under the Act on the basis of such reports.
- (5) That mere pendency of some criminal cases, in which the applicants were challaned were not sufficient to give jurisdiction to the Tribunals to proceed against the applicants.

In addition to the above common contentions in all the cases, the learned counsel in some of the cases also urged that mere conviction of some of the applicants once or twice in a case for a criminal offence was not sufficient ground to start proceedings against them under section 14 of the Act and in any case the tribunal should have seen whether any nexus existed between the pending or concluded case against the applicants and the allegations made in the reports against them before initiating proceedings under the Act.

Before considering the above submissions of the learned counsel for the applicants I may mention here that at the hearing of above cases, Mr.

A.A. Muhammadali and Mr. Ghulam Hyder Memon, the learned counsel for the State in the above cases, very frankly and candidly stated before me that they are not in a position to defend the orders of tribunals passed in the above-noted cases. I may also mention here that I ordered hearing of these cases together as I felt disturb by the exceptionally large number of cases filed during my sitting at Hyderabad Circuit for quashment of proceedings under the Act and upon a tentative examination of the orders in these cases, I found that resort to the proviso to section 5

of the Act was. made by the tribunals in an arbitrary and capricious manner in total disregard of the law laid down by this Court in large number of cases reported from 1976 to 1983. I will, therefore, here, once again point out those conditions which must exist at the time the tribunal assumes jurisdiction and issue process against a person on a report under the Act.

The Act, as it appears from its preamble, is not meant for punishing any person for any offence but is only designed to prevent commission and repetition of certain offences and to consolidate the law relating to anti-social elements and disorderly persons in the Province of Sind. A reading of section 14 of the Act, which specifies the acts for which preventive proceedings under the Act could be taken by the tribunals, will show that the object underlying the Act, is to check the habitual offenders from repeating certain acts which besides being criminal offences are anti-social and affect the society at large. The / Act certainly does not extend to isolated acts of an individual which may fall under one or more of the sub-clauses of section 14 of the Act.

Therefore, the foremost and fundamental conditions necessary for initiating proceedings against a persons under the Act is, that there should be material before the tribunal to show that the person proceeded against 'frequently and habitually' committed one or more acts mentioned 1 in sub-clauses (i) to (xxxv) of section 14 of the Act or has the reputation of habitually committing these acts. The expression 'habitually' and 'frequently' used in various sub-clauses of section 14 of the Act are key words which spell out the intent of the Legislature. These expressions denote a consistent, regular and undeterred course of conduct followed by a person over a length of time and cannot be interpreted so as to cover an isolated or astray act of an individual, however, grave it may be in its nature, and which may also fall under one or more subclauses of section 14 of the Act.

In the case of Shah Nazar Khan v. Assistant Commissioner and

S.D.M., Malir, Karachi and others P L D 1977 Kar. 582, decided by a Division Bench of this Court, the expression 'reputation', 'habit' were interpreted as follows:

"Thus the perusal of this clause of section 14 of the said Act would show that a person complained against must be in the habit of or should have reputation of habitually entering into or departing from or taking or bringing any goods out of or to Pakistan in contravention of any prohibition or restriction under any law for the time being in force.

Now habit is customary method of doing a thing. It is a customary conduct deriving as a tendency arising from frequent repetition. When a person has repeatedly acted in a particular way at intervals whether regular or irregular for such length of time as that we can predicate with reasonable assurance that he will continue so to act we may affirm that this is his habit. It would be incorrect to say that a man has a habit of any thing from a single act. The legislature must be taken to have used the word 'habit' as meaning persistence in doing an act, a fact which is capable of proof by adducing evidence of commission of a number of similar acts. Habitually must, therefore, be taken to mean repeatedly or persistently.

Reputation is a sum total of the rumours and talks about a man accepted and believed by those who know him well. The evidence of reputation is made up partly of the belief of deponent and partly of what he heard from others of their beliefs. Distinction between reputation and rumour is well-marked, though it may be difficult to say generally where a rumour ends and reputation begins. How many instances build up a reputation and how long it takes for rumours to ripen into reputation cannot be laid down by any hard and fast rule. A man's general reputation is the reputation which he bears in the place in which he lives. Reputation of a man's character is the inference or estimate from the sum total of a man's action and qualities drawn or formed by persons who are acquainted with him or among whom he resides and with whom he is chiefly

conversant or the circles in which he moves. It is the prevailing opinion formed by those, with whom he associates and who would have the best opportunity of knowing his habits and general behaviour.

Character consists of the qualities which constitute the individual while reputation is the sum of opinions entertained concerning him. The former is interior; the latter external. The one is the substance and the other the shadow, character is what a person is, reputation is what people say of him. But notwithstanding this distinction which is everywhere agreed upon, the two words are sometimes used synonymously."

Similarly in the case of Aftab Alam v. Province of Sind P L D 1979 Kar. 51 another Division Bench of this Court interpreted the word 'habitually' as follows:-

"The word habitually requires a continuous and permanence of criminal tendency something that has developed into a propensity that is present from day today. Its presence is demonstrated by the frequency of acts that by repetition have acquired the characteristic of being customary or usual behaviour that is to be regarded as almost inevitable when the appropriate conditions are present."

In another case reported as Shero alias Sher Muhammad v. The State PLD 1978 Kar. 368 the word 'habit' and reputation were interpreted as follows

"Habit implies a tendency or capacity resulting from the repetition of the same acts. It implies frequent indulgence in such acts connoting depravity of character. To prove a person to be by habit a thief the prosecution must adduce evidence of a person to be by habit a thief the prosecution must adduce evidence of commission of number of similar acts in each of which the person must be shown to have been involved.

For, habit has to be proved by aggregate facts and mere suspicion or complicity in isolated acts would not constitute habit. Thus the allegations must not be vague but there should be definite instances of such acts against the persons proceeded against with details of time and place of such acts. The report should also cite evidence of general repute."

It should further be kept in mind that as the Act makes inroads upon the liberty of individuals, it is subject to rule of strict construction and all the conditions mentioned in the Act for taking cognizance and exercise of jurisdiction by the tribunals must be shown to exist at the time the cognizance is so taken or the jurisdiction is so exercised. See Abdul Hameed v. S.D.M. and Tribunal PLD 1977 Kar. 575. Having examined briefly the nature and object of legislation I will now examine various provisions of the Act, which authorises a tribunal to take cognizance of the act complained of before it.

Section 4 of the Act sets out 2 conditions, for taking cognizance by the tribunal in respect of an act complained before it. Firstly, the person complained against should be a resident or the act complained of should have been committed within the local limits of jurisdiction of the tribunal and secondly, a complaint in writing in this behalf should have been made by a police officer not below the rank of Sub-Inspector to the tribunal. Where such a complaint is made before the tribunal it shall issue a summon under section 5 of the Act requiring the person complained against to appear and when such a person is in custody, a warrant will be issued directing the officer in whose custody such person is to produce before the tribunal on a date to be fixed by the tribunal. As soon as such person appears or brought before the tribunal, an enquiry is to be held by the tribunal into the allegations made against him under section 8 of the Act. The enquiry contemplated under this section is to be conducted by the tribunal as nearly as possible in the

manner prescribed under the Code of Criminal Procedure for conduct of trial and recording of evidence in a summon case. Pending completion of enquiry against a person under the Act, the tribunal may under subsection (3) of section 8 thereof direct such person to execute a bond with or without sureties for maintaining good behaviour until conclusion of enquiry and until such time such a bond is executed or in default of execution of such a bond, direct his detention in custody until execution of bond or until conclusion of enquiry against him as the case may be. The tribunal, may in the alternative, instead of asking for a bond from such person for his appearance before the tribunal, direct that he may be detained in custody for a specified period or until conclusion of enquiry against him.

However, the detention so ordered by the tribunal could not exceed two months except in a case when upon reference by the tribunal, the Commissioner for reasons to be recorded in writing agrees to such detention for a further period not exceeding four months. The above powers available to tribunal under the Act to direct a person complained against to furnish bond for maintaining good behaviour or to direct his detention until execution of bond or in default of execution of bond until conclusion of enquiry or to direct a person complained against for his detention for a specified period or until conclusion of enquiry against him without asking for a bond, are to be exercised only in those cases where the tribunal considers that immediate measure are necessary to prevent commission of the act complained of before it and record reasons, therefor, in writing. It will be seen that the order which the tribunal could pass against a person under section 8(3) of the Act during the pendency of the enquiry against him is almost the same which could be passed on conclusion of the enquiry. Therefore, such an order must be based on material which is in addition to the initial report on the basis of which cognizance was taken by the tribunal and which came before it in course of enquiry. This additional material should also be sufficient to show that repetition of the act complained of by the person complained against is imminent and cannot be prevented except by passing the order under section 8(3) of the Act.

I now turn to the proviso to section 5 of the Act which has been resorted to by the tribunal more than often as a rule although it is an exception to the main section. I have already referred earlier to the main section 5 of the Act which provides for issuance of summons to a person who is complained against before the tribunal. The proviso, which is an exception to this general rule, provides that when a report is made to the tribunal and from the report or other information it appears to the tribunal that there is immediate apprehension for commission of the act complained of by the person complained against which cannot be prevented except by immediate arrest of that person, it may issue a warrant for his arrest after recording the substance of report or information and the reasons for this extraordinary measures. It need not be emphasised here that the above action contemplated under the proviso to section 5 of the Act at the initial stage of enquiry is very stringent in its nature keeping in view the final order which the tribunal could pass under section 14 of the Act on the conclusion of enquiry. Therefore, such an action can be taken only in exceptional circumstances where the material produced before the tribunal really discloses a case of extraordinary urgency. Such action certainly cannot be based on routine reports received by the tribunal from Police Officer which lacks in material particulars. The scope of proviso to section 5 of the Act was considered by a learned Single Judge of this Court (as he then was) in the case of Muhammad Ashraf v. State 1980 P Cr. L J 95 and relying on two other Division Bench cases of this Court reported as Abdul Hamid v. S.D.M. and Tribunal, Hyderabad P L D 1977 Kar. 575 and Aftab Alam v. Tribunal and A.C. and S.D.M. P L D 1978 Kar. 305 it is held as follows

"It is, therefore, the requirement of law that the substance of the report or information is to be recorded by that Tribunal and it is inherent in the language used in section 5 of the Act that the Tribunal is to apply its mind to the question whether the acts which are complained against the

person to be proceeded against cannot be prevented otherwise than by his immediate arrest through the coercive process of a warrant. The normal process that is to be issued in such cases is the summons, and not a non-bailable warrant, and the action of the issue of a non-bailable warrant in the first instance is not meant to be a routine act of the Tribunal on receipt of a complaint under the provisions of the Sind Crimes Control Act, 1975. It is to be noticed that the Legislature has granted the power of issue of warrant of arrest against the person proceeded against on certain specific conditions, and unless these prerequisite conditions are fully satisfied and fulfilled, the punitive action would be totally unwarranted by the law. There is, therefore, no escape from the conclusion that the impugned order of the issue of the non-bailable warrant against the petitioner is in contravention of the specific provisions of law, and it is on that account an order without lawful authority."

Issuance of non-bailable warrants in the first instance under section 5 of the Act was also held without jurisdiction in the case of Wahid Bux v.

State 1977 P Cr. L J 257 in which proceedings were initiated on the basis of six instances of previous cases. It was held as follows:-

"In support of these allegations, six instances of previous cases have been cited out of which one case pertains to the year 1958, one to the year 1959, two were registered in the year 1962, and the rest are fresh cases which, however, arise out of a single incident.

Since beyond these cases, no other instance has been cited in support of the allegations levelled against the petitioners, we questioned the learned Additional Advocate-General whether the previous cases are still pending or these have been disposed of. In reply, learned Additional Advocate-General frankly stated that the petitioner was not even challaned in any of the earlier cases, and the two fresh cases registered against him arise out of a single incident. Learned Additional Advocate-General also frankly conceded that in view of the decision of this Court in Muhammad Ishaq v. The Tribunal and A.D.M., Lrkana (1) action under the Act could not have been taken against the petitioner on the basis of a solitary or a single instance relied upon in support of the complaint."

Section 6 of the Act provides that every report shall briefly contain the particulars of the acts with which the person complained against is charged. It will also give details of time and place of such acts and the general repute of person complained against or such other allegation made against him. Copies of these reports are also to be delivered to the person at the time of service of summons and warrants. In the case of Arsla Khan v. District Magistrate and Tribunal 1977 P CrL J 746 decided by a Division Bench of this Court the proceedings initiated against the detenu were under the Act were quashed on the ground that the police report on the basis of which the proceedings were started contained no particular or time or place of act AUEGEDAGAINS the detenu nor such reports accompanied by copies of F.I.Rs. <>r copies of complaint made against the detenu by the residents of the locality were produced. Similarly in the cases of Aftab Alam v. Tribunal and A.C. and S.D.M. Central PLD 1978 Kar. 305 and Shero v. State P L D 1978' Kar. 363, it has been held that failure to mention the particulars of act, time and place in the report filed against a person before the Tribunal is fatal to the proceedings. Apart from it in several other cases decided by this Court where the reports submitted to the tribunal against a person did not contain the particulars as specified in section 6 of the Act and the allegations were vague and general in nature it has been held that the proceedings initiated in such cases were in violation of the mandatory provisions of section 6 of the Act. In this connection reference may be made to the cases of Hap Ali Muhammad Solangi v. Tribunal and S.D.M. 1980 P Cr. L J 872 Krishan v. Tribunal and S.D.M. 1980 P Cr. L J 1198. I may reproduce here paragraph 4 of the judgment in Krishan case which deals with the scope of section of the Act. It is as follows:-

"4. It is forcefully contended on behalf of the petitioner that the complaint on which cognizance has been taken by the learned Tribunal besides, being palpably mala fides, is in total violation of the mandatory provisions of the Act. Section 6 of the Act provides that the report shall briefly state, besides the acts with which the person complained against is charged, the details of time and place of acts. It was thus held in *Uris v.*

Tribunal and S.D.M. Kotery and in Aftab Alam v. Tribunal and A.C. and S D M. (Central) that the complaint which does not satisfy the requirements of section 6 by not furnishing particulars of time and place in relation to the prejudicial acts alleged against the person the cognizance taken of such a complaint would be vitiated. The rule laid down in these judgments is fully attracted to the facts of the present case, inasmuch as no details of time and place in respect of the vague allegations against the petitioner made in the report have been furnished. The only details disclosed in the report relate to the isolated incident upon which the petitioner was sent up for trial on two charges already mentioned. The petitioner, as already stated, has been acquitted of the charge under the Arms Ordinance and the other charge is still pending trial."

It is, therefore, clear that where the tribunal acted under the proviso to section 5 of the Act on the basis of police report only which were vague and of general nature and lacked material particulars, such an action could not be sustained in law. Such an action also cannot be upheld if the material placed before the tribunal did not disclose any immediate apprehension for commission of act complained of by the person complained against.

In the light of above discussed legal position I will examine briefly the allegations made in each of the above-noted case against the applicants and the actions taken by the Tribunal.

Criminal Miscellaneous No. 843 of 1983:

In this case a report was filed before the Tribunal by the S.H.O. Sekhat P.S. alleging that the applicant Miyoon is a notorious thief and disposes of stolen property on Bhung. It is further alleged that the notorious thieves from far-off places often visit him and he harbours them and disposes of their stolen property on Bhung. He is also alleged to have connection with notorious dacoit Rato Charo and his party and supplies arms and ammunition to them. He keeps unlicensed weapons. He is terror in the locality and no person is ready to give evidence against him. There are no cases pending or decided mentioned in the report and all the witnesses against the applicant are police officers.

On the above report the Tribunal issued non-bailable warrants on 19-2-1983.

Criminal Miscellaneous No. 74 of 1984:

In this case S.H.O., Saeedabad Police Station, Hyderabad, in his report to the Tribunal alleged that the applicant Issa is a thief and disposes of stolen property on Bhung, bad characters of far-off places are visiting him to whom he used to supply arms and ammunitions and provides them food and he also informs the dacoits about the movement of the local police. He carries arms without licence and harass the people. One case under section 13-D, Arms Act of 1975 is mentioned in the report and all the witnesses against the applicant are police officers.

On the above report the applicant has been called upon to furnish two solvent sureties of the locality in the sum of Rs. five thousand each for a period of three years.

Criminal Miscellaneous No. 75 of 1984:

The S.H.O. Saidabad, Hyderabad P.S. filed a complaint in this case under section 14 before the Tribunal alleging that Shafoo is a habitual thief, criminal and man of questionable character having bad character and is a loafer type person and people of far-off places are visiting him. He takes Bhung on return of theft property and disposes of stolen property. He is a Patharidar and commits thefts. He keeps dangerous arms and ammunitions with him and shelters the gang of Nooru Machhi. He discloses the movements of police to the Nooru Machhi and others and provides them arms and ammunitions. He disturbs peace and tranquillity of public. No case either pending or decided is cited against him and all the witnesses are police officers.

The order of the Tribunal on the above complaint is almost reproduction of the order passed by him in Criminal Miscellaneous No. 74 of 1984.

Criminal Miscellaneous No. 154 of 1984:

In this case S.H.O., Cantt. Hyderabad, reported under section 14 of the Act to the Tribunal that the applicant Aslam Pervez alias Baboo is a habitual criminal, desperate and dangerous and his remaining at large without security is hazardous to the community. He has been committing offences of unlawful assembly. He is in the habit of committing offences of kidnapping/abduction and of Zina and has got no ostensible means of living. He is shown to have been challaned in three cases in 1972 under sections 324/34, P.P.C. 147, 148, 427, P.P.C. and 363, 11 Zina. He is also shown to have been challaned in two cases in the year 1983 under sections 323/324, 504, P.P.C. and 110, 55, Cr.P.C. One case under section 324/34, P.P.C. is also said to have been registered against him in 1984. The results of none of these cases is mentioned in this report and the learned Advocate appearing for the State is also unable to state the fate of these cases.

On the basis of above report the Tribunal on 2-5-1984 called upon the applicant to furnish respectable, surety of the locality in the sum of Rs. 5 thousand for a period of 3 years for maintaining good behaviour and peace.

Criminal Miscellaneous No. 76 of 1984:

The report in this case is made by S.H.O. Saidabad, Hyderabad P.S. against Ranjhan and is exact reproduction of the report against Sharfoo in Criminal Miscellaneous No. 75 of 1984. The order issued by the Tribunal on the above report is also identical as was issued in the Criminal Miscellaneous No. 75 of 1984.

Criminal Miscellaneous No. III of 1984:

Report in this case is made by S.H.O. Mehar P.S. which is, dated 27-3-1984 against applicant Amir Ali. It is alleged in the report that the applicant is a criminal and notorious thief, disposes of stolen property on Bhung. He causes disturbance. He feeds dacoits and supplies oil to them. Due to great awe and terror no person is ready to give evidence against him. In the report as many as 8 cases are mentioned and except one case which is of the year 1980 under section 110, Cr.P.C. in which he is shown to be convicted. In all other cases either he is discharged or acquitted or they are still pending. The witnesses against the applicant are all police officers. The applicant has been ordered on the basis of above report on 29th March, 1984 by the Tribunal to furnish a bond and two sureties of Zamindari class each solvent to the extent of Rs. two thousand and P.R. bond in the like amount for good behaviour until enquiry is completed.

Criminal Miscellaneous No. 113 of 1984:

In this case S.H.O. P.S. Chamber, reported against the applicant

Muhammad Khan that he habitually receives or deals in property which is stolen and that he is a habitual thief and in the habit of protecting offenders of far away places and disposes of such property. He causes fear and alarm to the general public. Two cases of 1981, under section 392/411, P.P.C. and 13-D, Arms Act are cited in the complaint. However, it is not shown as to what was the results of these cases. On the above report non-bailable warrants for arrest of applicant were issued on 10-2-1983 and on 12-2-1983 a show-cause notice was issued directing the applicant to furnish two respectable sureties of the locality in the sum of Rs. ten thousand each till the pendency of enquiry against him.

Criminal Miscellaneous No. 146 of 1984:

Report in this case is made by S.H.O. P.S. Naushahro Feroze against the applicant Nawab, alleging that he is by habit a thief and disposes of stolen property on receipt of Bhung. He is by habit cattle lifter. He is a Patharidar and dacoits and thieves of distance places visit him and he disposes of stolen property on payment of Bhung. He often commits dacoity. There is a great awe and terror to the public because of applicant and as such no body is willing to give evidence against him. Two cases under sections 392, P.P.C. of 1983 are mentioned in the report in which the applicant has been challaned. On the above report on 10th April, 1984 S.D.M. Tribunal Naushahro Feroze directed the applicant to execute a bond for keeping good behaviour for the terms of 3 years with one surety in the sum of Rs.20 thousand and P.R. bond in the like amount.

Criminal Miscellaneous No. 271 of 1984:

S.H.O. P.S. Market, Hayderabad, reported to the Tribunal against the applicant Khalid that the applicant is a notorious and known Goonda and bad character and deals in the illegal business of selling heroin and is hazardous to the public in general and he is also in the habit of breach of peace. He makes young boys of the locality habitual of heroin. One case under section 3/4 of Hudood Ordinance registered in 1984 against the applicant is mentioned in the report and the witnesses cited against the applicant are the complainant (S.H.O. himself and two A.S.Is. and a Head Constable). Non-bailable warrants has been issued against the applicant on the basis of above report and after recording the statement of S.H.O.

Criminal Miscellaneous No. 272 of 1984:

The report in this case is by the S.H.O. P.S. Market, Hyderabad, and is reproduction of the report in Criminal Miscellaneous No. 271 of 1984 and the order of the Tribunal is also identical.

Criminal Miscellaneous No. 283 of 1984:

S.H.O. P.S. Phul Diyoan, reported against the applicant Safdar in this case that he is a harbourer, receiving stolen articles and returning the same on Bhung. He is habitual of keeping unlicensed weapons and carrying the same with him. He is in good book with the thieves of far distance namely Aboo, Narejo, Khan Kerio and others through whom he is getting theft committed of the local people. No one is willing to give evidence against him because of fear. He is said to be involved and suspected in two theft cases registered in 1984 under section 550, Cr.P.C.

The witnesses mentioned are all police officers. Non-bailable warrants were issued against the applicant on the basis of above report.

S.H.O. Sekhat P.S. Hyderabad, reported against the applicant Kadoo before the Tribunal that he is a famous thief and receiver of stolen property and disposes of the same on Bhung. Thieves of far away places visit him frequently and he give shelter to them and disposes of their property. He usually keeps unlicensed arms and because of fear no one is prepared to give evidence. No case either decided or pending is mentioned against him and all the witnesses are police officers. On the basis of above report the Tribunal ordered the applicant to furnish two solvent sureties of the locality in the sum of Rs. five thousand each for a period of 3 years for maintaining good behaviour, peace and tranquillity.

Criminal Miscellaneous No. 322 of 1984:

The report of S.H.O. Sekhat P.S. Hyderabad against the applicant Malook in this case is a reproduction of the report against Kadoo in Criminal Miscellaneous No. 32 of 1984 and the order of the Tribunal is a copy of the order passed in the case of Dadoo (Criminal Miscellaneous No. 321 of 1984).

Criminal Miscellaneous No. 340 of 1984:

S.I.P. P.S. Site, Hyderabad, lodged a complaint in this case against the applicant Taj Muhammad before the Tribunal Hyderabad, alleging that the applicant is a well-known dealer of narcotics, he runs dens of narcotics. He also sells narcotics publicly and performs the act of Badmash and Gunda in the Mohallah. He is always armed with deadly weapons and no one is prepared to give evidence against him. One case under section 3/1, Prohibition of Hudood Ordinance of 1984 is mentioned against him and the two witnesses are the complainant and P.S.I. of S.I.T.E. After examining the S.H.O. S.I.T.E. the Tribunal directed issuance of non-bailable warrants against the applicant.

Criminal Miscellaneous No. 341 of 1984:

The report in this case is also by S.H.O. S.I.T.E., P.S. Hyderabad, and the allegations in the report under section 14 of the Act filed before the Tribunal are identical to the allegations made in the case of Taj Muhammad (Criminal Miscellaneous 340 of 1984). Two cases of 1984 under section 3/4 of Hudood Ordinance are mentioned against the applicant and all the witnesses are police officers. After recording the statement of S.H.O., S.I.T.E. the Tribunal ordered issuance of non-bailable warrants against the applicant.

Criminal Miscellaneous No.351 of 1984:

S.H.O., Noushahro Feroze, P.S. in his report under section 14 of the Act to the Tribunal reported against the applicant Sawan that he is Badmash, habitual thief, habitually commits theft and disposes of stolen property on Bhung. He goes by habit armed with deadly weapons and commits crimes and, therefore, no one is ready to give evidence against him. As many as 11 cases are mentioned in the report out of which he is shown to have been convicted in one case in 1966 under section 382, P.P.C. and in other case in 1970 under sections 457, 380, P.P.C. In all other cases he has been discharged or shown to have been suspected. The witnesses cited against him are police officers and one Nowab son of Ali Muhammad.

On the basis of above report the Tribunal called upon the applicant to furnish two sureties for keeping good behaviour for three years.

Criminal Miscellaneous No.357 of 1984:

S.H.O. P.S. Ladiyon reported in this case against Allah Jurio in his report under section 14 of the Act that the applicant is a bad character, arrogant and a man of fighting nature. He disturbs public peace. He sells charas. People using Charas and bad characters come to him from far and wide. He is harbour of Charas. No one from public is prepared to give evidence against him. As many as six cases are mentioned against him of which one is under sections 307, 458, P.P.C. of 1969, one under sections 322, 225, 148, P.P.C. of 1979, one under section 13, P.P.C.

of 1860, one under section 43 of Abkari Act of 1978, one under section 14 of Munashiyyat Ordinance of 1984 and one under section 353/332, P.P.C. of 1984. All witnesses mentioned are police officers. The applicant is said to be in jail as a result of issuance of non-bailable warrant against him.

Criminal Miscellaneous No.358 of 1984:

The report under section 14 of the Act against the applicant Hashim in this case is almost reproduction of the report against Allah Jurio, in Cr.Misc. No. 357/1984. However, in the list of cases only 3 cases namely two under section 4 of the Munashiyyat Act and one under sections 352, 333, P.P.C. are mentioned. The applicant is said to be in jail as a result of issuance of non-bailable warrants.

Criminal Miscellaneous No.428 of 1984:

S.H.O., P.S. Tharari Mohbat under section 14 of the Act reported to the Tribunal against applicant Khudad that Nadir Jiskani and Ali Gohar dacoits are on visiting terms with the relatives of applicant and the applicant give ammunitions to them. He is a torturer for public. Four criminal cases are mentioned against the applicant which are under sections 302, P.P.C., 453 and 353, P.P.C., 382, 504, 447, 148, 147, 149, P.P.C.

and the applicant is stated to have been challaned in all these cases. The results of these cases which are stated to be of 1971, 1974 and 1979 are not mentioned. The three witnesses are all police officers. The applicant is stated to be in custody as a result of the order passed under section 8 of the Act.

Criminal Miscellaneous No. 432 of 1984:

S.H.O. Phuleli P.S. Hyderabad, in this case reported to the Tribunal that the applicant Nawaz Ali is a habitual offender of selling contraband articles and he makes children and young chaps habitual taker of contraband. Life of young people of the nation are thus destroyed by the applicant. Three cases under section 3/4 of the Hudood Ordinance are said to have been registered against the applicant in the year 1984.

Three witnesses mentioned in the report are all police officers. Non-bailable warrants were issued on the basis of above complaint by the Tribunal after recording the statement of S.H.O. Phuleli, Hyderabad.

Criminal Miscellaneous No.436 of 1984:

S.H.O. S.I.T.E. P.S. Hyderabad, reported against Abdul Sattar applicant under section 14 of the Act to the Tribunal that he is a well-known Badmash/Criminal who deals in narcotics. He acts criminally in the Mohallah. He is thief and also commits theft. Criminal of narcotics dealers of distance places visit him. Due to fear no one is prepared to depose against him. Two cases of Hudood Ordinance of 1984 are mentioned in the report and all the witnesses are police officers.

On the basis of above report and after examining the S.H.O (complainant) the Tribunal directed the applicant to furnish respectable and notable surety of the locality solvent to the extent of Rs. ten thousand with a bond in the like amount of keeping good behaviour for a period of 3 years.

Criminal Miscellaneous No.443 of 1984:

S.H.O., Phuleli, P.S. Hyderabad, in this report under section 14 of the Act to the Tribunal reported against the applicant Yameen that he is a notorious thief and scoundrel and habitual offender. He is quarrelsome and habitual thief. He disposes of stolen property and he is addict and deals in intoxicants. Two cases one under section 43/3 of Abkari Act of 1978 and the other under sections 454, 380, P.P.C. of 1984 are mentioned against him without disclosing the results. All the witnesses against the applicant are police officers. The Tribunal after recording evidence of S.H.O. issued non-bailable warrants against the applicant.

Criminal Miscellaneous No.385 of 1984:

S.I.P. of Matari P.S. in his report under section 14 to the Tribunal Hala, reported that applicant Ashiq Ali is a narcotic seller, runs a narcotic den. The narcotic seller from far-off places visit him and he supplies them every kind of narcotic. He has no ostensible means of livelihood. He moves in public armed with unlicensed deadly weapon in order to create harassment among them. He is Badmash and due to fear no body is prepared to depose against him. No cases are mentioned and in the list of witnesses all the witnesses are police officers. After this report by S.I.P. Matari P.S., the S.H.O. Matari filed an application before the Tribunal under section 5 of the Act for issuance of non-bailable warrants repeating all those allegations which are mentioned in the report referred to above and on the aforesaid application of S.H.O. the Tribunal issued non-bailable warrants against the applicant on 11-10-1984 and fixed the case for further proceedings on 18-10-1984. On 17-10-1984 the detenu was produced before the Tribunal which passed another order calling upon the applicant to show cause why he should not execute bond with two solvent sureties in the sum of Rs.10 thousand each for maintaining good behaviour until the conclusion of enquiry and simultaneously the tribunal also passed another order on the same day, namely, 17-10-1984 directing that the applicant be detained in jail for a period of two months commencing from 17-10-1984 to 16th December, 1984.

In all the above cases, the reports filed by the Police Officers before the Tribunal against the applicants respectively under section 14 of the Act contained allegations which are general and vague in nature. In none of these reports the details of acts, time or place of occurrence is mentioned as required under section 6 of the Act. Even in those cases where the Tribunal before issuing non-bailable warrants before calling upon the applicants to furnish sureties for maintaining good behaviour under section 8(3) of the Act during pendency of enquiry, examined the S.H.O. concerned or some other police officer in support of the complaint, the evidence so produced before the Tribunal did not proceed beyond repeating only those facts which were mentioned in the report in that case and which I already pointed out lacked those material particulars which are required to be stated under section 6 of the Act. I have already referred in the earlier part of my order number of decided cases in which it is held that mere vague allegations such as a person is a 'bully', a bad character or a thief or a scoundrel or badmash are not sufficient to initiate proceedings against a person under the Act. It is also held in those cases that mere pendency of one or more criminal cases against a person or his conviction for a criminal offences in one or two cases is also not sufficient ground to sustain proceedings against him under the Act. I, therefore, find no hesitation in holding that the proceedings in all these cases are without jurisdiction. However, I will here mention the last case (Cr.Misc. No. 385/84) specially in which the exercise of jurisdiction by the Tribunal under the Act is peculiarly perverse and devoid of judicious approach. In this case the Tribunal issued non-bailable warrants against

the applicant Ashiq Ali on the report of the S.H.O. and put off the case to 18-10-1984 for further proceeding. On 17-10-1984 which was not the date of hearing the applicant was produced in custody before the Tribunal and he was served with a copy of the order calling upon him to show cause why he should not execute bond with two sureties in the sum of Rs. ten thousand each for maintaining good behaviour until conclusion of enquiry. Simultaneously, the Tribunal passed another order on the same day directing detention of applicant for two months. It is quite clear from the certified copy of the diary sheet dated 17-10-1984 produced by the applicant that on 17-10-1984 neither any P.W. was present nor any evidence was recorded in the case. In these circumstances, the two orders passed by the Tribunal were not only wholly without jurisdiction but are a glaring example of perverse exercise of jurisdiction. I accordingly under section 561-A, Cr.P.C. quash the proceedings against the applicants in all the above- noted cases initiated under section 14 of the Act. These cases were disposed of by me by a short orders dated 26-11-1984 and the above are the reasons for the short orders.

Before parting with these cases I express my disapproval of the manner in which actions were taken under the Act by the Tribunals in these cases in utter disregard of the law laid down by this Court in numerous reported cases and accordingly direct the office to forward a copy of this judgment to the Provincial Government for appropriate measures in this regard. I was informed at the bar both by the learned counsel for the applicants as well as the learned State counsel that the officers who exercise powers as Tribunals under the Act are those who are working mostly on the executive side. The Provincial Government is authorised under section 3(2) of the Act to specially empower Magistrate of 1st Class to perform functions of Tribunals under the Act. If the Government so consider it feasible it may invest the powers of Tribunals under the Act only on those Magistrates of 1st Class in the province of Sind who are performing judicial functions and I am sure this step will go a long way in reducing the number of cases in this Court arising under the Act.

Proceedings quashed.

easylaw Case No.

1151514

Download Case